

Madhesi Commission Act, 2017

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MADHESHI COMMISSION ACT, 2074

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Amending Acts

1. Act to Amend Some Nepal Acts, 2075 2075.11.19

Act No. 20 of the year 2074

Preamble: Whereas, it is desirable to make necessary provisions regarding the Madheshi Commission for the protection and promotion of the identity, rights, and interests of the Madheshi community and for the empowerment of the Madheshi community,

The Legislature-Parliament pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Madheshi Commission Act, 2074."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Commission and that word shall also refer to the acting Chairperson.

(b) "Commission" means the Madheshi Commission pursuant to Article 262 of the Constitution.

(c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(d) "Madheshi Community" means the community defined by the Government of Nepal on the recommendation of the Commission.

(e) "Member" means a member of the Commission and that word shall also refer to the Chairperson.

(f) "Constitution" means the Constitution of Nepal. Chapter-2

Qualifications of Chairperson and Members and Conditions of Vacancy of Office

3. Qualifications of Chairperson and Members: The following person shall be qualified to be appointed to the post of Chairperson or Member of the Commission:-

(a) A Madheshi who has contributed for at least ten years in the field of protection and promotion of the rights and interests of the Madheshi community or empowerment of the Madheshi community or human rights or law,

- (b) Has obtained a bachelor's degree from a recognized university,
 - (c) Is not a member of any political party at the time of appointment,
 - (d) Has completed forty-five years of age,
 - (e) Has high moral character.
4. Conditions of Vacancy of Office: The office of the Chairperson or Member of the Commission shall become vacant in any of the following circumstances:-
- (a) If he/she submits a written resignation to the President,
 - (b) If his/her age completes sixty-five years,
 - (c) If the term of office pursuant to Sub-article (3) of Article 262 of the Constitution expires,
 - (d) If an impeachment motion pursuant to Article 101 of the Constitution is passed against him/her,
 - (e) If the President removes him/her from office pursuant to the recommendation of the Constitutional Council on the grounds that he/she is unable to remain in service and perform work due to physical or mental illness,
 - (f) If his/her death occurs.
- 5.

Chapter-3

Functions, Duties and Powers of the Commission

7. Functions, Duties and Powers of the Commission: The functions, duties and powers of the Commission shall be as follows:-
- (a) To study the overall situation of the Madheshi community and recommend to the Government of Nepal on matters of policy, legal and institutional reforms to be made in relation thereto,
 - (b) To formulate national policies and programs for the protection and promotion of the rights and interests of the Madheshi community and the empowerment of such community and recommend to the Government of Nepal for implementation,
 - (c) To study and research whether the provisions made regarding the protection and promotion of the rights and interests of the Madheshi community and the empowerment of such community have been effectively implemented and advise the Government of Nepal on steps to be taken for effective implementation,
 - (d) To advise the Government of Nepal on reforms to be made in the existing legal, policy and institutional arrangements regarding the protection and promotion of the rights and interests of the Madheshi community and the empowerment of such community,
 - (e) To review, monitor and evaluate the implementation of policies and programs related to the Madheshi community,
 - (f) To monitor or cause to monitor the implementation of recommendations made or advice given by the Commission,
 - (g) To formulate special programs for the development and empowerment of persons who are economically or socially backward within the Madheshi community and recommend to the Government of Nepal for implementation,
 - (h) To study and research various languages, scripts, cultures, histories, traditions, literature, and arts within

the Madheshi community and formulate programs for the protection and development of such languages, scripts, cultures, histories, traditions, literature, and arts and recommend to the Government of Nepal,

(i) To conduct awareness programs for the protection and promotion of the rights and interests of the Madheshi community and the empowerment of such community,

(j) To formulate programs to end evil practices, superstitions and all forms of exploitation prevalent in the Madheshi community and for the empowerment of the Madheshi community and recommend to the Government of Nepal,

(k) To monitor whether international treaties and agreements to which Nepal is a party concerning the Madheshi community have been implemented and Amended by the Act to Amend Some Nepal Acts, 2075. make necessary recommendations or provide advice to the Government of Nepal for implementation,

(l) To collect complaints against persons or institutions violating the rights of the Madheshi community and recommend to the concerned body for investigation and inquiry thereon,

(m) To conduct detailed study and research regarding the identity of the Madheshi community and recommend to the Government of Nepal to list surnames,

(n) To review, monitor and evaluate awareness programs conducted by the Government of Nepal and other organizations for the protection, promotion and empowerment of the rights and interests of the Madheshi community,

(o) To formulate and implement a code of conduct for the Chairperson, Members and employees of the Commission,

(p) To approve the annual plan and program of the Commission.

8. May Seek Opinions and Advice: The Commission may coordinate, consult or seek opinions with other constitutional bodies, government offices or public institutions regarding its work and proceedings. 9. May Engage Services of Experts: If any work to be performed pursuant to this Act and prevailing federal law cannot be performed by the manpower working in the Commission, the Commission may, stating the reason therefor, engage the services of experts in accordance with prevailing federal law. 10. May Form Committees or Task Forces: (1) For the purpose of performing any work of a special nature related to the Commission, the Commission may, by prescribing procedures, form any committee or task force.

(2) The terms relating to the work or scope of work of the committee or task force formed pursuant to Sub-section (1) shall be as determined by the Commission at the time of forming such committee or task force.

(3) While forming a committee or task force pursuant to Sub-section (1), representation must be on the basis of the principle of proportional inclusion as provided in the Constitution. 11. May Coordinate and Cooperate: The Commission may coordinate and cooperate as necessary with government bodies or public institutions. Chapter-4

Operation of the Commission

12. Office of the Commission: (1) For the operation of the Commission, the office of the Commission shall be located in the Kathmandu Valley.

(2) The Commission may also establish offices at the provincial level as required. 13. Meeting of the

Commission: (1) The work to be performed by the Commission pursuant to this Act shall be done according to the decision of the meeting of the Commission.

(2) The meeting of the Commission shall be held on such date, time and place as designated by the Chairperson as required.

(3) The Secretary of the Commission shall, by designating the date, time and place for the meeting of the Commission, send a notice including the agenda for discussion to all members generally forty-eight hours before the meeting time.

(4) If any Member wishes to discuss any subject other than the subjects mentioned in the agenda for discussion pursuant to Sub-section (3), such Member shall submit a notice stating the subject and reasons for such discussion to the Secretary of the Commission at least twenty-four hours before the meeting.

Upon receipt of such notice, the Secretary of the Commission shall inform all members thereof, and such subject shall be deemed to be included in the agenda of the Commission.

(5) Notwithstanding anything contained in Sub-sections (3) and (4), with the consent of all members present at the meeting of the Commission, discussion may be held and decision may be made on subjects not included in the agenda.

(6) If more than fifty percent of the members currently holding office in the Commission are present, the quorum for the meeting of the Commission shall be deemed to be complete.

(7) The meeting of the Commission shall be chaired by the Chairperson.

(8) The decision of the Commission shall be by majority, and if the votes are equal, the Chairperson shall cast the deciding vote.

(9) The record of the decision of the Commission shall be prepared by the Secretary of the Commission and kept after obtaining the signatures of the Chairperson and Members. Amended by the Act to Amend Some Nepal Acts, 2075.(10) An officer of the Nepal Civil Service of the gazetted first class shall work as the Secretary of the Commission. Until such employee is appointed, the senior-most employee of the Commission shall work as the Secretary of the Commission.

(11) Other procedures relating to the meeting of the Commission shall be as determined by the Commission.

14. Not to Participate in Decision-Making Process if Conflict of Interest: If any Member of the Commission has an interest, concern or stake in any subject under consideration in the Commission or if a close relative of such Member is directly affected, such Member shall give prior notice of such matter to the Commission and shall not participate in the decision-making process by the Commission on such subject. 15. Division of Work: The division of work of the Chairperson and Members shall be as prescribed by the Commission. 16. To Act as Acting: If the office of the Chairperson becomes vacant for any reason, Amended by the Act to Amend Some Nepal Acts, 2075.if he/she is unable to perform the functions of his/her office pursuant to Sub-article (6) of Article 101 of the Constitution, if he/she goes on a foreign visit, or if he/she remains on leave for more than seven days, the senior-most Member of the Commission shall act as the acting Chairperson of the Commission. 17. No Hindrance to Work and Proceedings of Commission: The work and proceedings of the Commission shall not be hindered merely by reason of the vacancy of the position of any Member. Chapter-5

Miscellaneous

Organizational Structure and Employees of Commission: (1) The organizational structure and staffing of the Commission shall be as approved by the Government of Nepal. (2) The employees required for the operation of the Commission shall be provided by the Government of Nepal.

19. To Observe Official Dignity and Conduct: (1) The Chairperson and Members of the Commission shall observe official dignity as follows:- (a) To perform their official duties independently, impartially and honestly for the protection and promotion of the rights and interests of the Madheshi community and for the empowerment of the Madheshi community, (b) Not to do any act that may disturb the relationship among various castes, communities and religions. (2) The Chairperson and Members of the Commission shall observe official conduct pursuant to this Act or prevailing federal law.

20. To Provide Cooperation in Work and Proceedings: If the Commission requests cooperation from any body or office-holder in the course of performing its work, it shall be the duty of such body or office-holder to provide such cooperation.

21. May Send Letter for Implementation: If any body or office-holder fails to provide necessary cooperation to the Commission, the Commission may send a letter for cooperation to the supervising body or officer of such body or officer.

22. Annual Report: (1) The Commission shall submit an annual report of its work and proceedings to the President within three months from the date of the end of the fiscal year. (2) The annual report pursuant to Sub-section (1) shall include, in addition to other subjects, the following subjects:- (a) Details of implementation of the annual program of the Commission and cost expenditure, (b) Details of recommendations and advice given by the Commission to the Government of Nepal or any other body, (c) Status of implementation of recommendations and advice referred to in clause (b), (d) Financial and physical resources of the Commission and the status of their utilization, (e) Details of other work and proceedings conducted regarding the fulfillment of the obligations to be performed by the Commission pursuant to this Act.

23. Liaison with Government of Nepal: The Commission shall liaise with the Government of Nepal through the Ministry of Federal Affairs and General Administration.

24.

Delegation of Powers: The Commission may, subject to prescribed conditions, delegate any of the powers conferred upon it pursuant to this Act to the Chairperson, Member, the Government of Nepal, Provincial Government, any body or any officer or employee of the local government as necessary for exercise and compliance.

Omitted by the Act to Amend Some Nepal Acts, 2075.

25. 26. Protection of Action Done in Good Faith: No legal action shall be instituted against any office-bearer, employee or any person assigned by the Commission in relation to any work or action done in good faith pursuant to Amended by the Act to Amend Some Nepal Acts, 2075.this Act or the rules made under this Act.

27. Power to Make Rules: (1) The Commission may make necessary rules for the implementation of this Act. (2) If the rules to be made pursuant to Sub-section (1) include subjects that impose financial burden or liability on the Government of Nepal, the Commission shall Amended by the Act to Amend Some Nepal Acts, 2075.obtain the consent of the Government of Nepal, Ministry of Finance. (3) The rules made by the Commission pursuant to Sub-section (1) shall commence from the date of publication in the Nepal Gazette.

28. Power to Make Directives: The Commission may, subject to this Act and the rules made under this Act, make necessary directives for the smooth operation or causing the operation of the work to be performed.

Schedule Omitted by the Act to Amend Some Nepal Acts, 2075